

HOUSE BILL 2304

By Barrett

AN ACT to amend Tennessee Code Annotated, Title 2,
relative to elections.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 2, Chapter 3, Part 3, is amended by deleting the part.

SECTION 2. Tennessee Code Annotated, Title 2, Chapter 6, Part 1, is amended by adding the following as a new section:

(a) Early voting satellite locations established by a county election commission must:

(1) Be placed in geographic locations to include not more than four (4) precincts;

(2) Be evenly distributed throughout the county to ensure that the precincts are readily accessible;

(3) Utilize a secure, serialized, watermarked, hand-marked paper ballot;

(4) Maintain a separate check-in process for voters to obtain a ballot by precinct; and

(5) Ensure that all ballots are secured and placed in an optical scanner by individual precinct only and that ballots are segregated by precinct and are not co-mingled with ballots from other precincts.

(b) The coordinator of elections shall promulgate rules to implement subsection (a), including:

(1) A requirement for the use of precinct-based optical scanners or the use of secure ballot boxes for each precinct;

(2) A requirement to utilize secure, serialized, watermarked, hand-marked paper ballots and the provision for the correct ballot type representing the satellite precinct(s); and

(3) The procedures for the process at the end of early voting to return the optical scanners or secure ballot boxes, or both, which are to remain in the county election commission office until such time as tabulation commences on election day.

(c)

(1) Voting at a satellite location must cease at the end of the early voting period.

(2) On election day, a voter shall only vote in the precinct where the voter resides.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.